

HOUSE No. 4833

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, December 22, 2025.

The committee on Public Health, to whom was referred the petition (accompanied by bill, House, No. 2436) of Homar Gómez for legislation to eliminate fees for the removal of a child's body by the Office of the Chief Medical Examiner, reports recommending that the accompanying bill (House, No. 4833) ought to pass.

For the committee,

MARJORIE C. DECKER.

HOUSE No. 4833

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to eliminate fees for the removal of a child's body by the Office of the Chief Medical Examiner.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are hereby amended by inserting after chapter 38 the
2 following chapter:-

3 CHAPTER 38A.

4 THE BENSON BILL.

5 Section 1. This act shall be known and may be cited as "The Benson Bill".

6 Section 2. For the purposes of this chapter, the following words shall have the following
7 meanings:-

8 “Child,” any individual aged 5 years or younger.

9 “Office,” the office of the chief medical examiner.

10 Section 3. Notwithstanding any general or special law or rule or regulation to the
11 contrary, the office shall be prohibited from assessing any fees or charges, including but not

12 limited to, fees for cremation viewings, on families for the removal, transportation, or handling
13 of a deceased child's body.

14 Section 4. Annually, not later than December 31, the office shall file a report on its work
15 pertaining to the removal, transportation, or handling of deceased children's bodies with the
16 clerks of the house of representatives and the senate and the joint committee on public health.
17 The report shall include, but not be limited to: (i) the total number of child cases handled by the
18 office; (ii) any costs the office absorbed related to the removal, transportation, or handling of a
19 deceased child's body; and (iii) any recommendations for additional funding if necessary.

20 Section 5. This act shall take effect 90 days after its passage.